

26VECV03635 26VECV03635

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Tentative Ruling

Boyadzhyan v. Abovian, Case no. 26VECV03635

Hearing date September 29, 2026

Plaintiff

Boyadzhyan's Motion to Disqualify Defendant Abovian's Counsel

Plaintiff

Boyadzhyan sues defendants Abovian and G. and R. Ouzouian, alleging defamation, referring to plaintiff as a "drug addict," "fraud" and "killer." Plaintiff moves to disqualify Abovian's counsel Geragos & Geragos, APC ("Geragos"), asserting a prior substantial attorney-client relationship. Defendant Abovian opposes.

The

court has authority to determine, in its own discretion, the disqualification of counsel. *People ex rel. Department of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135. Disqualification of counsel is "a drastic course of action that should not be taken simply out of hypersensitivity to ethical nuances or the appearance of impropriety." *Roush v. Seagate Technology, LLC* (2007) 150 Cal.App.4th 210, 219. Disqualification is required where there is a "substantial risk" that confidential information obtained in a prior representation "would be used to the disadvantage of the former client." *City and County of San Francisco v. Cobra Solutions, Inc.* (2006) 38 Cal.4th 839.

Plaintiff

brought this motion on an ex parte basis. See 9/3/26 Ex Parte.

The court denied the ex parte, setting a noticed hearing with the ex parte papers to serve as moving papers, with opposition and reply per Code. See 9/8/26 Min. Order. Plaintiff filed a second set of moving papers on 9/11/26, including a supplemental declaration of counsel Sacks, without permission. Abovian objects. The unauthorized filings are disregarded per Code Civ. Proc. §1005 and CRC rule 3.1300(a). Abovian's objections 1-8 SUSTAINED.

The

dispute arises from Geragos' prior representation of plaintiff and subsequent litigation between plaintiff and Geragos, LASC Case no. BC671202; the court takes judicial notice of that matter sua sponte per Evid. Code §452(d). Plaintiff argues Geragos represented him in a business sale dispute, and plaintiff later sued Geragos regarding a fee dispute. In the course of the prior representation and fee dispute, Geragos allegedly received, reviewed and retained confidential medical records, personal financial information and other sensitive private communications. Plaintiff argues such information falls within the definition of substantial relation per *Flatt v. Superior Court* (1994) 9 Cal.4th 275, 283, which held "access to confidential information by the attorney in the course of the first representation (relevant, by definition, to the second representation) is presumed and disqualification of the attorney's representation of the second client is mandatory; indeed, the disqualification extends vicariously to the entire firm."

Defendant

Abovian does not dispute that Geragos previously represented plaintiff but argues the course and scope of that representation does not constitute a substantial relation for purposes of this matter. Abovian argues Geragos represented plaintiff in a "dispute with the buyer of his business, concerning the purchase and sale agreement, the operating agreement, the monthly payments, and related agreements." Opp., 2:16-18. Abovian argues this case arises from statements allegedly made by defendants to third parties in 2025-26, so is unrelated to the prior representation. Abovian argues general familiarity with plaintiff arising from a prior representation does not warrant disqualification, citing *Khani v. Ford Motor Co.* (2013) 215 Cal.App.4th 916. *Khani* is inapposite, as it concerned a corporate vehicle warranty claim, where no allegations of personal medical or financial knowledge were made.

Plaintiff

disclosed private medical and financial information to Geragos. Decl. Boyadzhyan, para. 3. Plaintiff argues Geragos, without permission, disclosed that information in a 2019 complaint in the fee dispute matter. Plaintiff asserts information regarding his health and alleged alcohol use goes directly to the truth of some of the allegedly defamatory statements at issue in this case, and truth is a defense against a defamation claim. Plaintiff argues Geragos possessing knowledge of his personal financial information is prejudicial. He further argues Geragos' inappropriate 2019 disclosure demonstrates Geragos' willingness to weaponize plaintiff's private information against him.

Abovian

argues plaintiff's fee dispute lawsuit against Geragos constitutes waiver of the attorney-client privilege under Evid. Code §958. This unreasonably expands the scope of section 958, which provides a narrow, restricted exception to the privilege, stating there is no privilege as to a communication "relevant to an issue of breach of a duty arising out of the lawyer-client relationship." See *Fox Searchlight Pictures, Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 310. California courts restrict section 958 disclosures to information directly necessary to adjudicate the specific billing or malpractice dispute. *Glade v. Superior Court* (1978) 76 Cal.App.3d 738, 746. Section 958 does not provide enduring carte blanche to reveal or weaponize a former client's confidential communications or private information in other disputes or litigation. There has been no waiver of the attorney-client privilege between plaintiff and Geragos. Geragos' knowledge of plaintiff's personal medical history, private financial information and general litigation approach is substantial and requires disqualification.

Aside

from mandatory disqualification, trial courts have inherent power to disqualify where the "representation would undermine the integrity of the judicial process." Geragos' representation of Abovian bears the appearance of impropriety in violation of Code Civ. Proc. §128(a)(5). The allegations directly concern, in part, the truthfulness of statements allegedly made by Abovian concerning plaintiff's substance use. Geragos possesses protected information regarding said topic and demonstrated a history of disclosing such information in public filings when such information should not have been disclosed or at least should have been filed under seal. See CRC rule 1.9(c)(1); see also JN, 8/7/17 Compl., para. 23. Permitting Geragos to continue to represent Abovian would appear improper to the reasonable observer,

undermining the integrity of the judicial process.

The

motion to disqualify is GRANTED. Geragos & Geragos, APC is disqualified from serving as counsel for any party in this matter effective immediately. The court will discuss further steps to allow Abovian to retain new counsel.